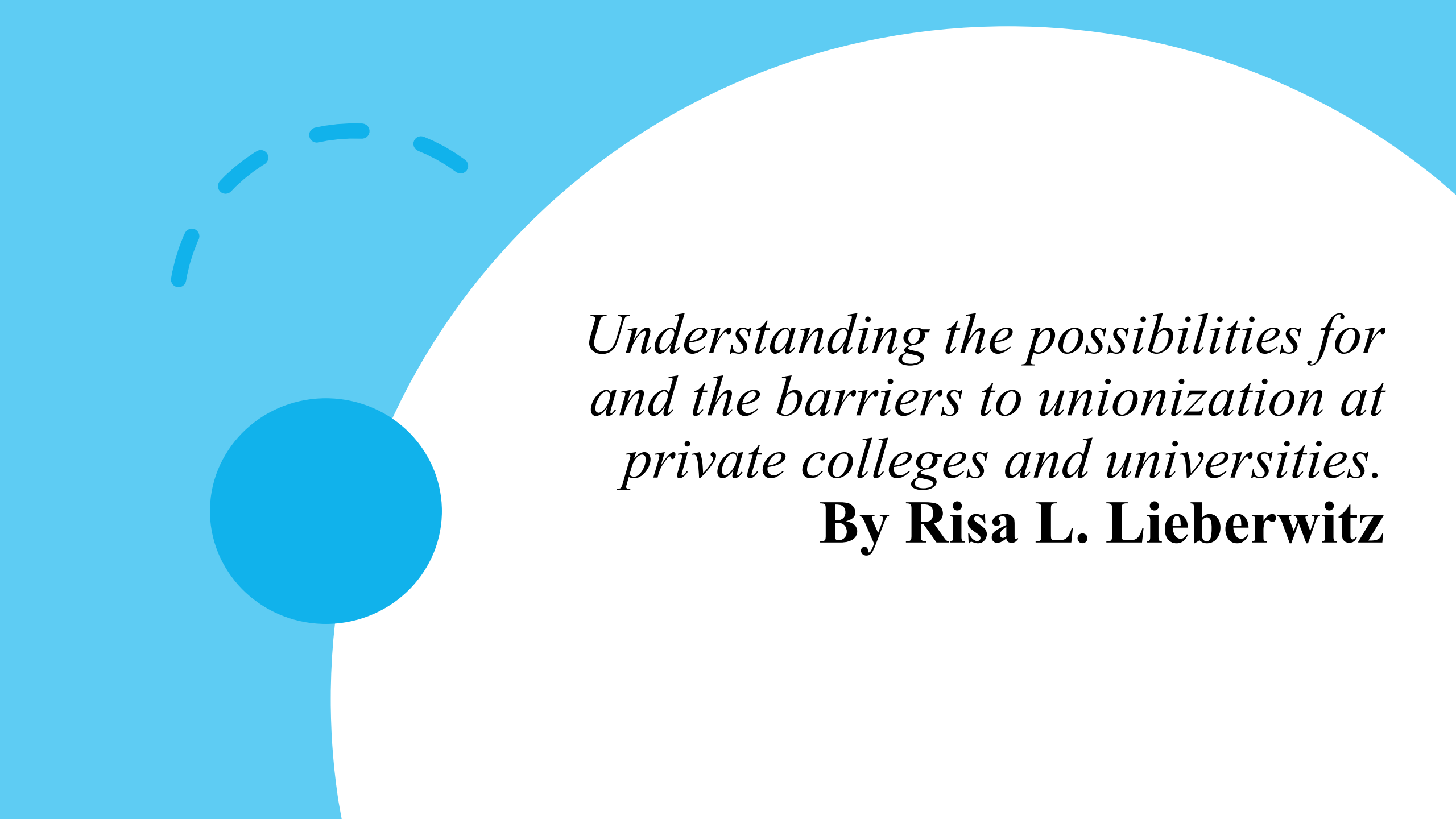


MOLLOY AAUP
ADVOCACY
CHAPTER
MEETING

Monday October 6th



*Understanding the possibilities for
and the barriers to unionization at
private colleges and universities.*

By Risa L. Lieberwitz

NLRB v. Yeshiva University

- US Supreme Court issued its 1980 decision in *NLRB v. Yeshiva University*, holding that most tenure-track and tenured faculty members at private colleges and universities are “managerial employees”—a category excluded from coverage and protection under the National Labor Relations Act (NLRA).

Pacific Lutheran University case

- In 2014, the National Labor Relations Board (NLRB) decided the *Pacific Lutheran University* case, holding that *Yeshiva* should be interpreted in the context of the increasing corporatization of higher education since 1980.
- The *Pacific Lutheran* decision would thus open the door to expanded unionization of private college and university faculty, particularly for the growing ranks of **non-tenure-track faculty**.
- Decision from 2014 that held the **university's adjunct faculty** were employees under the National Labor Relations Act and thus eligible to unionize, rejecting the university's claims of managerial status and religious exemption.

The NLRB vs. Bethany College. 2020

- National Labor Relations Board (NLRB) has ruled that it lacks jurisdiction over faculty at religious colleges and universities. As a result of the decision, religiously affiliated nonprofit colleges and universities that hold themselves out as religious institutions are exempt from the agency's jurisdiction over faculty.
- The NLRB's decision in *Bethany College* **reverses its 2014 ruling in *Pacific Lutheran University*** (*parts that apply to religious institutions*).
- NLRB is not fully constituted now. The NLRB requires a three-member quorum to issue decisions – currently only has 2.



•Options?

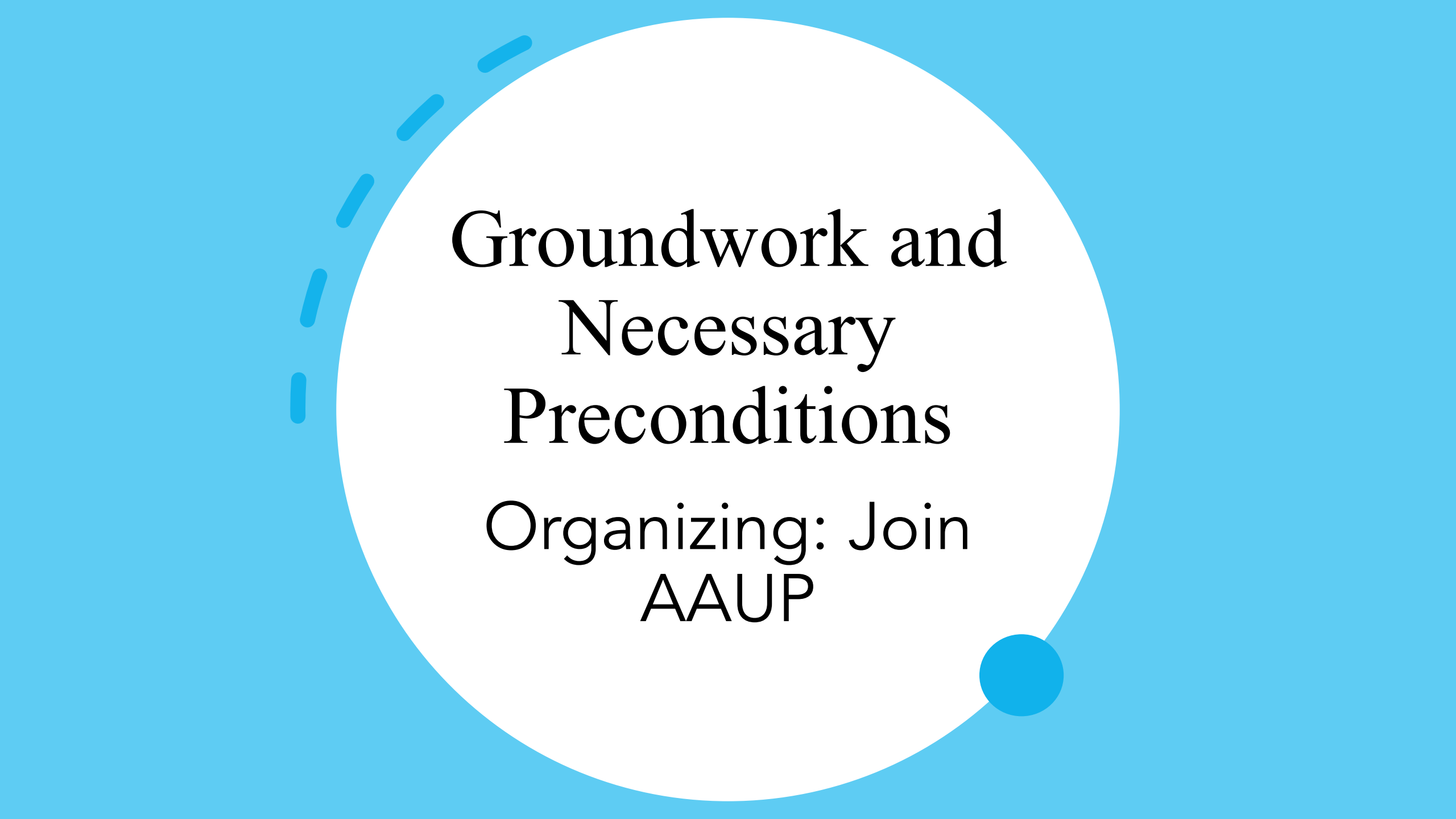


Winning voluntary recognition

- Winning voluntary recognition means persuading your administration to recognize the statutory rights of the bargaining unit you present if and when you demonstrate majority support from that bargaining unit.
- University Administration's approval

Loyola Marymount University

- Last year **non-tenure track faculty members** at Loyola Marymount University voted in favor of certifying their union. But last week, the administration not only walked away from the bargaining table, but said it would no longer recognize the union.
- The union filed a complaint with the NLRB in response, but experts say given the current political climate, the board and the courts will likely side with the university.



Groundwork and Necessary Preconditions

Organizing: Join
AAUP

Organize Every Campus Campaign

- Unifying Molloy AAUP with the larger AAUP
 - Be concerned with issues regarding higher education as a whole.
 - Other Advocacy Chapters
 - NY State Conference



•Questions/Discussion

